

26NNCV01399 26NNCV01399

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[TENTATIVE] ORDER OVERRULING DEFENDANT RUSNAK CORPORATION D/B/A AUDI PASADENA'S DEMURRER

I. INTRODUCTION

This lemon law action arises from Plaintiff Anomeh Naylous Zakarian's lease of a 2024 Audi Q8. On February 26, 2026, Plaintiff filed the Complaint asserting causes of action for: (1) violation of the Song-Beverly Consumer Warranty Act for breach of express warranty; (2) violation of the Song-Beverly Consumer Warranty Act for breach of implied warranty; (3) violation of Civil Code section 1793.2(b); and (4) negligent repair.

On March 26, 2026, Defendant Rusnak Corporation d/b/a Audi Pasadena filed the instant demurrer to the fourth cause of action for negligent repair. Plaintiff filed an opposition on June 12, 2026, and Defendant filed a reply on June 18, 2026

Meet and Confer

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), the demurring party is required to meet and confer with the party who filed the pleading at least five days before the responsive pleading is due. This must occur in person, telephone or by video conference with the aim of resolving any objections raised in the demurrer. Additionally, the demurring party must file and serve a declaration detailing the meet and confer efforts. It should be noted, however, that the failure to meet and confer is not itself grounds for sustaining or overruling a demurrer or granting or denying a motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

Defense counsel declares that counsel sent a meet and confer letter on March 20, 2026, and follow-up emails on March 23 and March 24, 2026, but received no response from Plaintiff's counsel. The parties did not engage in a substantive meet and confer discussion before the demurrer was filed. (Demurrer, p. 2.)

Thus, the requirement not satisfied. However, the Court elects to reach the merits of the motion in the interest of judicial efficiency.

II. LEGAL STANDARD

A demurrer tests the legal sufficiency of a complaint. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A plaintiff's allegations must be accepted as true for purposes of demurrer, no matter how "improbable" they are. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604 (*Del E. Webb*).) Allegations need not be accepted as true if

they are contradicted by judicially noticeable facts. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1474.)

Pleadings are to be broadly construed (Code Civ. Proc., § 452) and demurrers are to be overruled where the facts are sufficient to state any cause of action. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Code of Civil Procedure section 430.10, subdivision (f) provides for a demurrer where a pleading is uncertain. Demurrers for uncertainty are disfavored and are only sustained where a pleading is so incomprehensible a defendant cannot reasonably respond. (*A.J. Fistes v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616.)

III. ANALYSIS

Defendant Audi Pasadena demurs to the fourth cause of action for negligent repair, arguing that Plaintiff has failed to allege facts sufficient to state a claim and that the claim is barred by the economic loss rule. (Demurrer, pp. 5-8.).

Fourth cause of action: negligent repair

The necessary elements for negligence are: (1) the existence of a legal duty of care that the defendant owed to the plaintiff; (2) breach; (3) causation; and (4) damages. *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318; see CACI No. 1220.

Here, Plaintiff alleges that the Subject Vehicle was repeatedly presented to Audi Pasadena for repair of numerous vehicle concerns, including unprompted braking, steering issues, suspension malfunctions, locking system malfunctions, and other defects. (Complaint, ¶¶ 12-17.) Plaintiff further alleges that Audi Pasadena owed a duty to use ordinary care and skill in the storage, preparation, and repair of the Subject Vehicle, breached that duty, and that such breach proximately caused Plaintiff's damages. (Complaint, ¶¶ 66-69.)

At the pleading stage, these allegations are sufficient to place Defendant on notice of the nature of the negligent repair claim. Although Defendant argues Plaintiff has not identified the specific negligent acts performed during the repair process, the Complaint alleges multiple repair visits and claims that Audi Pasadena failed to exercise due care in performing those repairs. (Complaint, ¶¶ 12-17, 66-69.) The Court finds these allegations sufficient to state a cause of action for negligent repair and survive demurrer.

Economic loss rule

Defendant argues that the negligent repair claim is barred by the economic loss rule because Plaintiff alleges only economic losses associated with the Subject Vehicle and does not allege personal injury or damage to property other than the vehicle itself. (Demurrer, p. 8.)

The economic loss rule provides that, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) However, there is a "recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services." (*Id.*, at p. 933.) "In that context, ... a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide 'careful efforts' in rendering contracted for services, but 'most clients do not know enough to protect themselves by inspecting the professional's work or by other independent means.'" (*Id.* [citations omitted].) "Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the 'careful efforts' they have contracted to provide." (*Id.* [citations omitted].)

In a negligent performance case, a “plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage” based on a consideration of the following factors: “(1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant’s conduct and the injury suffered, (5) the moral blame attached to the defendant’s conduct, and (6) the policy of preventing future harm.” (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 782, 786.) “[T]he foreseeability of the economic harm to the plaintiff from the defendant’s negligent conduct [is] the critical factor.” (Id. at 782.)

Here, Plaintiff alleges that Audi Pasadena repeatedly undertook to diagnose and repair the Subject Vehicle and failed to exercise ordinary care and skill in performing those repairs. (Complaint, ¶¶ 12-17, 66-69.) The alleged repair services were intended to benefit Plaintiff, and it was foreseeable that negligent performance of those services could result in economic harm to Plaintiff. At the pleading stage, these allegations are sufficient to invoke the negligent-performance exception to the economic loss rule.

Based on the foregoing, the Court OVERRULES the demurrer as to the fourth cause of action.

IV. ORDER

The Court OVERRULES the demurrer.

Defendant Rusnak Corporation d/b/a Audi Pasadena to give notice.

Dated: June 26, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT